

June 08, 2018



U.S. Department
of Transportation

East Building, PHH – 30
1200 New Jersey Avenue, Southeast
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 9198
(SEVENTEENTH REVISION)

(FOR RENEWAL SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit provides relief from the Hazardous Materials Regulations (HMR) in that government agencies on file as Grantees in Office of Hazardous Materials Safety, Approvals and Special Permits Division (OHMSAPD) office, may use aircraft under their operational control to transport specific hazardous materials. This Special Permit provides no relief from the HMR other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: HMR 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: HMR 49 CFR § 173.7(f) Government Operations and Materials in that an aircraft may be under the direction and control of the government for less than 90 days under the conditions provided herein.
5. BASIS: This special permit is based on the Department of the Interior's application dated April 27, 2018, submitted in accordance with § 107.105 and the public preceding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identi- fication Number	Packing Group
Hazardous materials authorized by this special permit are limited to materials authorized in the NWCG Standards for Aviation Transport of Hazardous Materials.	As Appro- priate	As Appro- priate	As Appro- priate

Notes:

(1) All Class 1 explosives must have been properly classed and approved in accordance with 49 CFR prior to packaging and offering for transportation by aircraft.

(2) All Class 2 compressed gases must be properly filled and packaged in DOT-specification cylinders in accordance with 49 CFR.

7. SAFETY CONTROL MEASURES: All aircraft and personnel operating under the terms of this special permit must be in compliance with the requirements of the most current version of the "NWCG Standards for Aviation Transport of Hazardous Materials" on file with the Office of Hazardous Materials Safety Approvals and Permits Division (OHMSAPD).

8. SPECIAL PROVISIONS:

a. A current copy of the Interagency Aviation Transport of Hazardous Materials Handbook described above and the Emergency Response Guide (ERG) must be carried aboard each aircraft transporting hazardous materials.

b. A current copy of this special permit, the Interagency Aviation Transport of Hazardous Materials Handbook, and the Emergency Response Guide (ERG) must be maintained at each facility where the hazardous materials are offered or reoffered for transportation. For helicopter field operations loaded or reloaded under the direct supervision of an agency employee trained in accordance with the Handbook/Guide.

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c. All aircraft operated under this special permit must be government owned or under a government contract and/or under the exclusive direction and operational control of a Grantee to this special permit for the purposes a government function such as national defense, intelligence missions, firefighting, search and rescue, law enforcement or biological or geological resource management.

d. Vendors shall operate in accordance with this special permit and the NWCG Standards for Aviation Transport of Hazardous Materials in lieu of their FAA approved manual.

9. MODES OF TRANSPORTATION AUTHORIZED: Cargo aircraft only.

10. MODAL REQUIREMENTS: See paragraph 8 above.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by NWCG Standards for Aviation Transport of Hazardous Materials.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) - 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous

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materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: dl/kah